

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On July 14, 2022, a complaint was filed with the Spanish Agency for Data Protection against KUTXABANK, S.A., with NIF A95653077 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that the complained party provided her ex-husband with "justifications for movements in my name," and he presented this information in one of the judicial proceedings in which they are involved, despite the fact that the complainant also requested information from the complained party regarding the ownership of certain movements; however, in her case, this information was denied.

Along with the complaint, she provides:

- A copy of the disputed justifications related to her (the last of which is dated October 7, 2020) in which, among other things, the name of the sender (the complainant), concept, originating account, destination account, name of the beneficiary, and concept are listed.
- The emails exchanged with the complained entity regarding the request made (on February 9, 2022) in which she requests "justification showing the holder" who has made certain movements, "ownership of the credit card charged to the joint account that causes charges (...)," "if there is any income from A.A.A. with the concept 'commissions' since January 2020."
- A copy of the response received on February 21, 2022, in which a certificate is attached, as well as a response from the complainant stating that what she received only justifies the movements made and does not serve her for the judicial claim, as it does not indicate "who of the two has made the movements because the detail in the application does not specify it and in whose name the credit card making the expense is registered."
- A copy of a final response from the complained party (dated February 21, 2022) in which it states the following: "I am sorry, but that is the information that our Legal Advisory Department allows us to certify. Any other information would have to be through a judicial request."

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party/ALIAS, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on September 19, 2022, as stated in the certificate in the file.

No response has been received to this forwarding letter.

THIRD: On October 14, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On April 5, 2022, a complaint was filed by the complainant reporting the suspicion that her ex-husband

had access to her economic information, for which she requested access to her data by KUTXABANK S.A. personnel, providing a response from the entity informing her that "the individuals who handle data within the Entity treat the information to which they have access with absolute confidentiality... in case you wish to send the result of any indications or evidence of potential breaches of confidentiality that you consider have occurred, so that, if applicable, the corresponding internal procedure can be initiated."

On May 9, 2022, a resolution of inadmissibility of the complaint was issued informing that "there are no sufficient documentary indications to deduce a breach of the duty of confidentiality or that the technical and organizational measures applied by the complained entity are not appropriate to guarantee an adequate level of security to the risk. Furthermore, the right of access regulated in data protection regulations does not authorize knowing the identity of specific individuals within the organization of the data controller who may have had access to personal data, nor does it protect the obtaining of information about the internal accesses made by such individuals in the exercise of their functions" (IT/02987/2022).

On February 2, 2023, a request for information was sent to the complained entity, and from the response received, it is inferred:

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- The claimant is the holder of bank accounts ***901 and ***674, the first of which is joint with her ex-husband.

- The responding party states that, following the request from the Agency, dated February 6, 2023, an internal investigation is initiated ex officio by the DPD regarding access to the claimant's account, and it is verified that there are accesses by an employee of the entity that "do not correspond to a justified business operation nor are initially justified by any of their links or professional relationships with the account."

In this regard, it provides a document (document no. 2), which lists the accesses by Centers of the banking entity and explains them.

The explanation type 2 indicates: "It corresponds to accesses that are not justified by the functions of the center nor by requests made by the account holders. As developed in the response letter, the accesses have been made by a single employee at different times, and the Entity has activated the protocol to verify the potential irregular conduct of the employee against the Policies and rules of the Entity."

- The responding party states that once knowledge of the facts was obtained, the internal protocols and procedures for incident management, including data protection incident management procedures, were automatically activated, with the involved departments sending the corresponding reports so that the DPD could assess the scope of the facts and, consequently, adopt the appropriate technical and organizational measures.

For these purposes, the DPD concluded that it is not necessary to implement or reinforce the existing protocols in the field of data protection "beyond the possible actions that may arise from the isolated and individual conduct of the employee," since all the company's policies expressly reflect the duty of professional secrecy.

- Regarding the claims made by the claimant, the entity has provided a screenshot of Complaints and Claims available in online banking, dated December 1, 2021, in which undue accesses by an employee of the entity to her account ***674 are claimed, providing information from it to third parties. (document no. 3).

And on December 2, 2021, a response to the claim was sent indicating that there is no element or evidence that could validate the alleged incident. It is also informed that the entity is available to the claimant in case she has indications or evidence of potential confidentiality breaches so that an internal procedure can be initiated. (Document no. 4).

The entity has also provided an exchange of emails with the claimant and an authorized representative requesting information again about the described facts dated December 2 and 21, 2021, and January 3, 2022. In this last response email, they inform her that her claim constitutes a report of irregular conduct by an employee and, in application of the procedures and processes established in the Entity, they inform her that it is necessary to file a complaint through the ethical channel. (documents 5, 6, and 7).

The responding party states that no complaint was filed. It also states that there is no request for information from Courts regarding the account of the respondent.

On the other hand, the claimant has provided in her complaint several emails exchanged with the banking entity requesting the holder who has made movements in the joint account ***901, the holder of the card that has caused charges and certain deposits in the account by her ex-husband, being answered on several occasions and as recorded providing a certificate issued by the banking entity. In the last email, the claimant again requests the holder who has made the movements and is answered, on February 21, 2022, indicating that this is the information that the Legal Advisory Department allows to certify and any other information would have to be through a judicial request.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) assigns to each supervisory authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Right of access of the data subject

Article 15 of the GDPR, which regulates the right of access of the data subject, establishes the following:

"1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;

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- c) the recipients or categories of recipients to whom the personal data have been communicated or will be communicated, in particular recipients in third countries or international organizations;
- d) where possible, the intended retention period for the personal data or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information about their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

III

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying risks of likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, where appropriate:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless he or she is required to do so by Union or Member State law."

IV

Conclusion

The complaint refers to accesses to the complainant's current account providing information to a third party, her ex-husband, who has presented the information in a trial.

The complainant is the holder of bank accounts ***901 and ***674, the first of which is joint with her ex-husband.

On February 6, 2023, an internal investigation is initiated ex officio by the DPD regarding accesses to the complainant's account ***901, and it is verified that there are accesses by an employee of the entity that "do not correspond to a justified business operation nor are initially justified by any of their links or professional relationships with the account." The entity has provided the document where this information is recorded and where it is stated that a protocol is activated to verify the potential irregular conduct of the employee against the Policies and rules of the Entity.

The recipient of the information about the bank account ***901 is jointly held with the complainant.

Therefore, knowledge of the movements of that account does not violate the confidentiality to which the responding party is obliged.

Regarding the complainant's requests for information about the accesses made to her account ***674, the entity has sent responses in this regard, the last response provided by the entity, dated January 3, 2022, informs her that it is necessary to file a complaint through the ethical channel. Likewise, the complainant has provided various emails requesting the holder who has made movements in account ***901, and the latest, dated February 21, 2022, indicates that a judicial requirement is needed.

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Therefore, based on the information provided in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection hereby RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to KUTXABANK, S.A., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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